



FACULTY
OF LAW

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AN INVITATION-ONLY WORKSHOP

Ius Maris Climaticum

*Directions in Maritime Law and Policy
After the Climate Advisory Opinions*

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In 2024 and 2025, the International Tribunal for the Law of the Sea, the International Court of Justice, and the Inter-American Court of Human Rights each handed down advisory opinions on the climate. The workshop reads them against the practice of maritime law. Each contribution runs to approximately twenty minutes, with discussion built around the papers themselves.

8 – 9 June 2026

Lund · Malmö

Convened by Olena Bokareva · Luciana Fernandes Coelho · Anıl Öztürk · Aref Fakhry

FUNDED BY

The Rune and Lena Lavin Foundation for Legal Research

This event is organised in part under the auspices of the research project Sustainable Carbon Capture, Transportation and Storage: Liability and Governance in Light of International and EU Law.

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supported by *Marianne and Marcus
Wallenberg Foundation*

12.00 *Lunch*

13.05 *Opening*

I

The Climate Advisory Opinions

13.30 – 15.15

13.30 **Tomas Heidar** · *President International Tribunal for the Law of the Sea, Hamburg*
Opening keynote. The ITLOS Advisory Opinion on Climate Change and the Ocean.

14.00 **Aref Fakhry** *World Maritime University, Malmö*
The Systemic Architecture of Climate Jurisprudence: Ordering the Triple Crown.

14.20 **Matthew Scott** *Raoul Wallenberg Institute, Lund University*
Litigating Climate-Related Human Mobility: Framework Principles from the ICJ and IACtHR Advisory Opinions.

14.40 **Niels Krabbe** *Department of Law, University of Gothenburg*
BBNJ and the Climate Functions of Marine Ecosystems: Towards a Climate-Oriented Law of the Sea?

15.00 *Discussion*

15.15 *Coffee*

8 June 2026

II

The Law of the Sea

The Climate Regulatory Architecture

15.30 – 17.25

15.30 Konrad Marciniak · *Judge International Tribunal for the Law of the Sea, Hamburg*
The ITLOS Advisory Opinion: The Second Question, with an Outlook.

15.50 Henrik Ringbom *Åbo Akademi University, Turku*
UNCLOS, the IMO, and the Limits of the Advisory Opinions for Shipping Decarbonisation.

16.10 María Carolina Romero Lares *World Maritime University, Malmö*
National Obligations to Regulate GHG Emissions as Marine Pollution following the 2025 ICJ Advisory Opinion.

16.30 Andree Kirchner *ISIRIM, Bremen*
The Law of the Sea and the Triple Planetary Crisis.

16.50 Luciana Fernandes Coelho *Faculty of Law, Lund University*
Common But Differentiated Responsibilities and Respective Capabilities in International Law: A Comparative Analysis of the Advisory Opinions of the ICJ, ITLOS, and IACtHR.

17.10 Discussion

17.25 Group photograph

17.35 Close of Day 1

08.45 *Arrival*

09.00 *Opening*

III

Regions and Implementation

The Climate Regulatory Architecture in Practice

09.10 – 10.50

09.10 Gabriela Argüello *Department of Law, University of Gothenburg*
ITLOS Advisory Opinion and Shipping Decarbonisation: The Growing Relevance of Regime Interaction.

09.30 Elizabeth Batsara *Ricardo plc, Athens*
The Advisory Opinions and the Justification for Regional Maritime Decarbonisation Action.

09.50 Vonintsoa Rafaly *World Maritime University, Malmö*
The Temporality of Due Diligence: A Reading of the ITLOS Advisory Opinion.

10.10 Bismark Owoahene Acheampong *Ghana Maritime Authority, Accra*
Green Shipping Corridors in West Africa: Bridging the Gap between Global Climate Architecture and Regional Implementation.

10.30 Olena Bokareva & Anıl Öztürk *Faculty of Law, Lund University*
Aurora and the Maritime Law of Negative Emissions after the Advisory Opinions: State Obligations and Sub-Seabed Storage.

10.50 *Coffee break*

IV

Closing Roundtable

11.10 – 12.00

11.10 Open roundtable · led by Gabriela Argüello *With Yoshifumi Tanaka (Faculty of Law, University of Copenhagen) as discussant*

12.00 *Closing remarks and group photograph*

12.30 *Lunch*

The Room

Convenors

Olena Bokareva

Faculty of Law, Lund University

Luciana Fernandes Coelho

Faculty of Law, Lund University

Anıl Öztürk

Faculty of Law, Lund University

Aref Fakhry

World Maritime University, Malmö

Contributors

Tomas Heidar

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Konrad Marciniak

Judge, ITLOS, Hamburg

Yoshifumi Tanaka

Discussant · Faculty of Law, University of Copenhagen

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ISRIM, Bremen

Niels Krabbe

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Vonintsoa Rafaly

World Maritime University, Malmö

Henrik Ringbom

Åbo Akademi University, Turku

María Carolina Romero Lares

World Maritime University, Malmö

Matthew Scott

Raoul Wallenberg Institute, Lund

— WORKING NOTES —

An invitation-only workshop. Each contribution runs to approximately twenty minutes, with discussion built around the papers themselves.

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Funded by *The Rune and Lena Lavin Foundation for Legal Research*. Held in part under the auspices of the CCSlaw project, supported by the Marianne and Marcus Wallenberg Foundation.

Convenors

Olena Bokareva

Dr Olena Bokareva is Senior Lecturer in Private Law at the Faculty of Law, Lund University. She holds a doctorate from Lund University, with a thesis on the Rotterdam Rules. She is Principal Investigator of the Marianne and Marcus Wallenberg Foundation project *Sustainable Carbon Capture, Transportation and Storage: Liability and Governance in Light of International and EU Law*, conducted jointly with Dr Gabriela Argüello (Gothenburg).

Luciana Fernandes Coelho

Dr Luciana Fernandes Coelho is Postdoctoral Fellow in Maritime Law at the Faculty of Law, Lund University. She holds a doctorate from the World Maritime University, with a thesis on the implementation of marine scientific research obligations under UNCLOS by Small Island Developing States. She has worked with the Brazilian delegation on the BBNJ negotiations.

Anıl Öztürk

Dr Anıl Öztürk is Postdoctoral Fellow in Maritime Law at the Faculty of Law, Lund University. He holds a BA from Bilkent University, an LLM from Trinity College Dublin, and a PhD from the National University of Ireland. His research addresses the law of the sea, EU and international climate law, and the regulation of carbon capture and storage, the EU Emissions Trading System, and the Carbon Border Adjustment Mechanism.

Aref Fakhry

Dr Aref Fakhry is Associate Professor at the World Maritime University, Malmö, where he lectures in the MSc Maritime Law and Policy specialisation. He holds a PhD from the University of Southampton, with doctoral research on the implications of piracy in the Horn of Africa for maritime contracts. His areas of expertise comprise commercial maritime law, maritime security, marine environmental law, and ocean governance and policy.

Contributors

Tomas Heidar · *President, ITLOS*

H.E. President Tomas Heidar has served as President of the International Tribunal for the Law of the Sea since 2023, and as Judge of the Tribunal since 2014. He is Director of the Law of the Sea Institute of Iceland and Co-Director of the Rhodes Academy of Oceans Law and Policy. From 1996 to 2014 he served as Legal Adviser to the Ministry for Foreign Affairs of Iceland.

Konrad Marciniak · *Judge, ITLOS*

Dr Konrad Marciniak has served as Judge of the International Tribunal for the Law of the Sea since October 2023. He holds a doctorate in International Law from Cardinal Stefan Wyszyński University, Warsaw. From 2007 to 2023 he served at the Treaty and Legal Department of the Polish Ministry of Foreign Affairs, latterly as Director and Legal Adviser, and was Vice-President of the Bureau of the BBNJ Intergovernmental Conference.

Yoshifumi Tanaka · *Discussant*

Professor Yoshifumi Tanaka holds the chair of International Law with Specific Focus on the Law of the Sea at the Faculty of Law, University of Copenhagen. He received his doctorate from the Graduate Institute of International Studies, Geneva. He is the author of five monographs, including *The International Law of the Sea* (Cambridge University Press, 3rd ed., 2019).

Bismark Owoahene Acheampong

Mr Bismark Owoahene Acheampong serves as a maritime policy and ocean governance specialist at the Maritime Services Division of the Ghana Maritime Authority, Accra. His public writing addresses maritime decarbonisation, the just transition for seafarers, and the legal and regulatory challenges of greening West African shipping.

Gabriela Argüello

Dr Gabriela Argüello is Associate Senior Lecturer in Environmental Law at the Department of Law, University of Gothenburg, and Research Fellow of the Royal Swedish Academy of Letters, History and Antiquities. She is the author of *Marine Pollution, Shipping Waste and International Law* (Routledge, 2020), and co-investigator with Dr Bokareva on the legal frameworks for sustainable carbon capture, transport and storage.

Elizabeth Batsara

Dr Elizabeth Batsara is Senior Consultant on Maritime Decarbonisation at Ricardo plc, Athens. She advises the European Commission, the International Maritime Organization, and national governments on regional and international maritime climate policy, with particular reference to emissions trading instruments and the IMO net-zero framework.

Contributors

Andree Kirchner

Professor Dr Andree Kirchner is Founding Director of the Institute for the Law of the Sea and International Marine Environmental Law (ISIRIM) at the Hugo Grotius gGmbH, Bremen, and Professor of International Law at the University of Applied Sciences Bremerhaven. His research addresses the law of the sea, marine environmental law, marine genetic resources, and maritime security.

Niels Krabbe

Dr Niels Krabbe is a researcher in international law at the Department of Law, University of Gothenburg, with a doctorate on bioprospecting and deep-sea genetic resources. He previously served as Deputy Director at the Swedish Ministry for Foreign Affairs and represented the EU in the final BBNJ negotiations.

Vonintsoa Rafaly

Dr Vonintsoa Rafaly is Postdoctoral Fellow at the WMU-Sasakawa Global Ocean Institute, World Maritime University, Malmö, under the Future Ocean Programme of the Nippon Foundation. She holds a doctorate from the University of Nantes. Her research addresses ocean governance, international environmental law, international fisheries law, and ocean justice.

Henrik Ringbom

Professor Dr Henrik Ringbom holds the chair of Marine Law at Åbo Akademi University, Turku, and serves concurrently as Professor II at the Scandinavian Institute of Maritime Law, University of Oslo. He previously served as Head of Unit for Marine Environment at the European Maritime Safety Agency. He is a past President of the Finnish Maritime Law Association.

María Carolina Romero Lares

Dr María Carolina Romero Lares is Head of the Maritime Law and Policy Specialization at the World Maritime University, Malmö. She holds a Dr. iur. (cum laude) from Leibniz Universität Hannover, an LLM from Tulane University, and her first law degree from Andrés Bello Catholic University.

Matthew Scott

Dr Matthew Scott is Senior Researcher and Head of the Human Rights and the Environment thematic area at the Raoul Wallenberg Institute, and Associate Professor at the Faculty of Law, Lund University. He is the author of *Climate Change, Disasters and the Refugee Convention* (Cambridge University Press, 2020).